LAWS2100 Jurisprudence
LAWS8005 Theories of Law and Justice

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Week 2 – Law and Coercion



Law and Coercion

- John Austin, *The Province of Jurisprudence Determined* (1832)
  - Lecture I
  - Lecture VI

- **H.L.A. Hart, *The Concept of Law* (1961)**
  - Chapter II ('Laws, Commands, and Orders')
  - Chapter III ('The Variety of Laws')
  - **Chapter IV ('Sovereign and Subject')**

- Can law *exist* without coercion and/or sanctions?
- Is coercion an *essential* feature of law?
- Is coercion a *necessary* feature of law?
- <u>What is this week's problem?</u>

Hart on law and coercion

1. **How does law differ from and how is it related to orders backed by threats?**
2. How does legal obligation differ from, and how is it related to, moral obligation?
3. What are rules and to what extent is law an affair of rules?

This week, we are analysing the claim that "…the key to the understanding of law is to be found in **the simple notion of an order backed by threats, which Austin himself termed a 'command'.**"

HLA Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 16



Preface to *The Concept of Law*

"I am heavily and obviously indebted to other writers; indeed **much of the book is concerned with the deficiencies of a simple model of a legal system, constructed along the lines of Austin's imperative theory**. But in the text the reader will find very few references to other writers and very few footnotes. Instead, [the reader] will find at the end of the book extensive notes designed to be read after each chapter […] I hope that this arrangement may discourage **the belief that a book on legal theory is primarily a book from which one learns what other books contain**."

HLA Hart, *The Concept of Law* (OUP, 3rd ed, 2012) vii

Commands, habits, and the essence of law

"To some it has seemed clear that in this situation where one person gives another an order backed by threats, […] we have the essence of law, or at least 'the key to the science of jurisprudence'. **This is the starting-point of Austin's analysis by which so much English jurisprudence has been influenced**. (CL, 6-7)

"The clearest and the most thorough attempt to analyse the concept of law in terms of the **apparently simple elements of commands and habits**, was that made by Austin in the *Province of Jurisprudence Determined*. (CL, 18)

John Austin (1790-1859)

- Called to the Bar (1818)
- Married Sarah Taylor (1919)
- Chair of Jurisprudence and the Law of Nations, University of London (1826-1835)
- Bonn, Germany (1827-1828)
- ***The Province of Jurisprudence Determined* (1832; 2nd edition 1861)**
- ***Lectures on Jurisprudence, or the Philosophy of Positive Law* (1863)**

Jurisprudence and positive law

Law = “a **rule** laid down for the guidance of an intelligent being by an intelligent being having **power** over him” (PJD, 18)

According to Austin, there are four kinds of laws:

1. Divine law (Austin rejects the notion of Law of Nature)
2. **Human laws – laws set by political superiors (positive law) and laws set by men not political superiors**
3. Objects improperly but by close analogy termed laws – rules set and enforced by mere opinion, including international law (positive morality)
4. Objects metaphorically termed laws (e.g., the laws determining the movements of inanimate bodies or masses)

“**The matter of jurisprudence is positive law**: law, simply and strictly so called: or law set by political superiors to political inferiors.” (PJD, 18)

Lecture I

- Laws or rules properly so called, are **a species of commands**
- A **command** has two elements:

(i) a signification of **desire**; and

(ii) the party to whom the command is directed is liable to **evil** in case they do not comply with the expressed desire

- *Command* and *duty* are correlative terms: wherever a duty lies, a command has been signified; and wherever a command is signified, a duty is imposed
- Evil = sanction, or an enforcement of obedience (note: for Austin, punishments are a class of sanctions)

Austin's definition of 'command'

Three ideas are captured by the term 'command':

A wish/desire conceived by a rational being that another rational being shall do or forbear

An evil to proceed from the former, and to be incurred by the latter, in case the latter does not comply with the wish

An expression/intimation of the wish by words or other signs

→ For Austin, Command, duty and sanction are inseparably connected terms/concepts

Austin's definition of a law/rule properly so called

- A law is a command which obliges a person or persons, and obliges *generally* to acts or forbearances of a *class*
- Laws (and other commands) proceed from superiors and bind/oblige inferiors
- Austin understands superiority to mean ***might***: i.e., **the power to affect others with evil or pain**, and of forcing them through fear of that evil, to fashion their conduct to one's wishes
- Whoever can oblige another to comply with their wishes, is the superior
- Superiority is the power to enforce compliance with a wish

Lecture VI

How can we distinguish positive laws from other kinds of commands?

"Every positive law is set by **a sovereign person, or a sovereign body** of persons, to a member or members of the **independent political society** wherein that person or body is sovereign or supreme" (PJD, 165)

Three inseparably connected ideas:

- Sovereignty
- Subjection
- Independent political society

Society – Political and Independent

A given society is a society ***political*** iff (if and only if) the generality of its members is in a habit of obedience to a determinate and common superior

A given society is a society ***political*** **and** ***independent*** iff that superior does not habitually obey another person or body

A given society is in a state of nature, or split into two or more independent political societies, unless habitual obedience is "…rendered by the *bulk* of its members […] to *one and the same* superior…" (PJD, 169)

Austin's legal positivism

"**The existence of law is one thing; its merit or demerit is another**. Whether it be or be not is one enquiry; whether it be or be not conformable to an assumed standard, is a different enquiry. A law, which actually exists, is a law, though we happen to dislike it, or though it vary from the text, by which we regulate our approbation and disapprobation."

(*The Province of Jurisprudence Determined*, Lecture V)

"**Expounding principles and distinctions which are the appropriate matter of jurisprudence, I shall present them abstracted from every particular system**. But I shall also endeavour to illustrate them by examples from the two particular systems which I have studied with some accuracy, namely, the Roman Law, and the Law of England."

(*Lectures on Jurisprudence or the Philosophy of Positive Law*, Lecture XI)

The gunman situation

"**The gunman orders his victim to hand over his purse and threatens to shoot if he refuses**; if the victim complies we refer to the way in which he was forced to do so by saying that he was *obliged* to do so. To some it has seemed clear that **in this situation where one person gives another an order backed by threats**, and, in this sense of 'oblige', obliges him to comply, **we have the essence of law, or at least 'the key to the science of jurisprudence'**. This is the starting-point of Austin's analysis by which so much English jurisprudence has been influenced."

HLA Hart, *The Concept of Law* (OUP, 3rd ed, 2012) 6

The gunman situation writ large

The key aspects of the gunman situation:

- The gunman is giving an **order**
- The bank clerk is in the gunman's **power**
- **Coercive orders** / Orders backed by threats

"Let us recall the gunman situation. A orders B to hand over his money and threatens to shoot him if he does not comply. According to the theory of coercive orders this situation illustrates the notion of obligation or duty in general. **Legal obligation is to be found in this situation writ large**; A must be the sovereign habitually obeyed and the orders must be general, prescribing courses of conduct not single actions. (CL, 82)

<u>Can the gunman situation help us answer the question 'what is law'?</u>

Commands and Orders

"Although a suggestion of authority and deference to authority may often attach to the words 'order' and 'obedience', we shall use the expressions 'orders backed by threats' and 'coercive orders' to refer to orders which, like the gunman's, are supported only by threats, and we shall use the words 'obedience' and 'obey' to include compliance with such orders." (CL, 19)

"**To command is characteristically to exercise authority over men, not power to inflict harm**, and though it may be combined with threats of harm a command is primarily an appeal not to fear but to respect for authority. **It is obvious that the idea of a command with its very strong connection with authority is much closer to that of law than our gunman's order backed by threats**…" (CL, 20)

The gunman situation and the complexity of modern legal systems

According to Hart, four elements should be added to the gunman situation to have a plausible model for law:

- Generality (general type of conduct + general class of persons)
- Enduring character
- General habit of obedience
- Supremacy and independence (see CL, 24)

"If, following Austin, we call such a supreme and independent person or body of persons the sovereign, **the laws of any country will be the general orders backed by threats which are issued either by the sovereign or subordinates in obedience to the sovereign**." (CL, 25)

Hart's criticisms

Three groups of objections (Chapter III):

- The content of laws
  - Duty-imposing and power-conferring rules
- Their range of application
- Their modes of origin

A more fundamental criticism (Chapter IV):

"…**the whole conception of a supreme and independent sovereign habitually obeyed**, on which the model rests, is misleading, since there is little in any actual legal system which corresponds to it." (CL, 27)

Chapter IV – Sovereign and Subject

1) The idea of a habit of obedience

Can this idea explain two *salient features* of most legal systems?

- The continuity of law
- The persistence of law

2) The legally unlimited power enjoyed by the sovereign

3) The position occupied by the sovereign above the law

Habits vs Rules

In both cases we can observe convergence of behaviour…

However, according to Hart, there are three salient differences:

For Hart, "…habits are not 'normative': they cannot confer rights or authority on anyone." (CL, 60)

Deviations from a rule are met with *criticisms*

The rule is regarded as a *good reason* for making such criticism

(Social) rules have an *internal aspect*

The relationship between law and coercion

"There are two sources of continuing interest in the relationship between law and coercion, **one clarificatory, the other evaluative**."

(G. Lamond, 'Coercion and the Nature of Law' (2001) 7(1) *Legal Theory* 36)

Views on the connection between law and coercion (ibid, 42-45):

- Coercion is the genus of which law is a species (Austin)
- Law is a distinctive form of social ordering because of its reliance upon coercion (for Kelsen, law is a coercive social order)
- Coercion is the most salient aspect of law (Bentham, Holmes, Raz)
- Law regulates the use of coercion (Bobbio)
- The point of legal practice is to guide and constrain the coercive power of the state (Dworkin)

Is coercion a *necessary* feature of law?

- According to Lamond, "…the right to regulate coercion lies within the scope of law's distinctive claim to authority." (p. 56)
- Lamond also argues that coercion "is not the most *salient* aspect of law – at best it is the most salient aspect of certain legal systems" (Ibid; emphasis added)

→ Cf. Fred Schauer's article 'Was Austin Right After All?' (one of the readings for week 2):

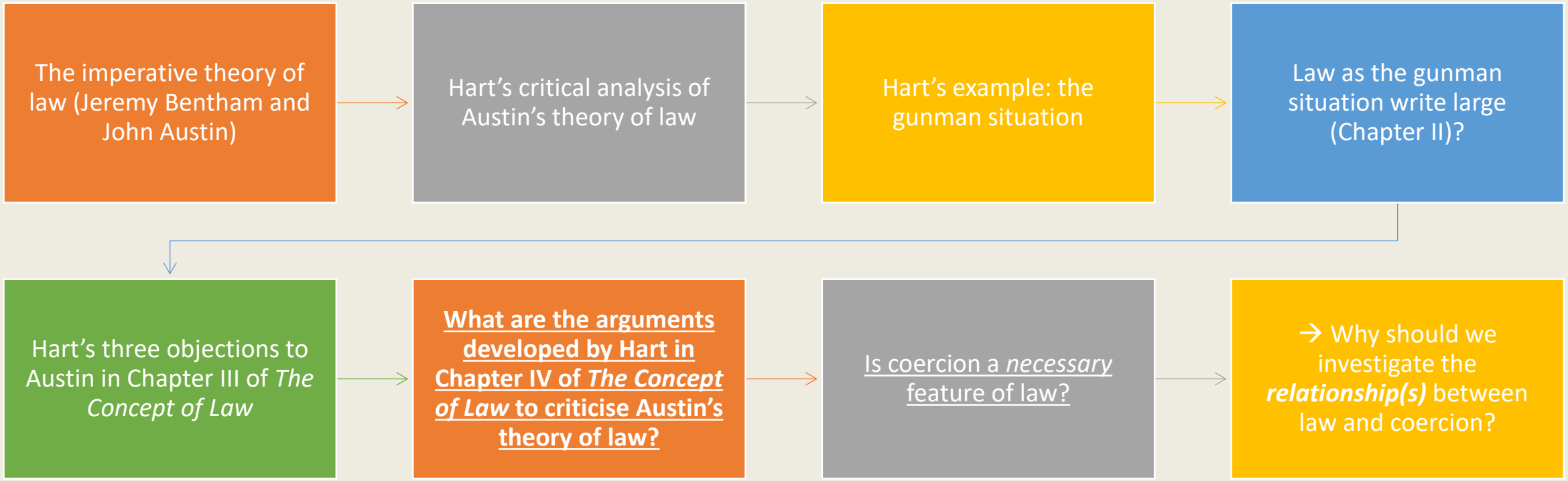
"**The phenomenon of law as it is experienced is overwhelmingly coercive** […], and there appear to be actual legal systems in which little reason for obedience on the part of citizens or of officials exists outside of fear of sanctions, often sanctions meted out solely on the whim of a single individual. Insofar as a common view of the enterprise of legal theory treats ignoring this **highly salient dimension of law** as largely non-problematic, it may, as Hart put it, fail to "fit the facts"[…]. **But then the question shifts to a question about the nature and value of that view of the task of legal theory**." (p. 18)

Fred Schauer on the role of sanctions in a theory of law

- Is Austin's account of law sound? According to Schauer, this question "may be a function of the answer to the question of what a theory of law is designed to accomplish" (see abstract)
- The issue of legal obligation
- Hart's critique
- According to Schauer, Hart's criticism of Austin is "problematic in two distinct ways" (p. 7)

➢ **"…the focus of legal theory is dependent on a conception of what a legal theory is supposed to accomplish" (p. 16)**

Summary and tutorial prep



Curiosity, Charity, Clarity

The **principle of charitable interpretation** requires us to interpret a given statement/claim in the most rational way possible and to discuss its best, strongest possible version.

Consider the way in which Hart critically analysis Austin's theory of law:

- "[…] we have not hesitated where Austin's meaning is doubtful or where his views seem inconsistent to ignore this and **to state a clear and consistent position**. Moreover, where Austin merely gives hints as to ways in which criticisms might be met, **we have developed these (in part along the lines followed by later theorists such as Kelsen) in order to secure that the doctrine we shall consider and criticize is stated in its strongest form**." (CL, 18)